EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

# DECISION

Applications nos. 23128/20 and 39947/20
Javid IBRAHIMOV against Azerbaijan
and Sagif GURBANOV against Azerbaijan
(see appended table)

The European Court of Human Rights (First Section), sitting on 28 September 2023 as a Committee composed of:

Krzysztof Wojtyczek*, President*,
Lətif Hüseynov,
Ivana Jelić*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above applications lodged on the various dates indicated in the appended table,

Having regard to the formal declarations accepting a friendly settlement of the cases,

Having deliberated, decides as follows:

## FACTS AND PROCEDURE

The list of applicants and their representatives is set out in the appended table.

The applicants' complaints under Article 11 of the Convention concerning the unlawful or disproportionate measures against organisers and participants of public assemblies were communicated to the Azerbaijani Government ("the Government"). The applicants' other complaints based on the same facts were also communicated under Article 6 of the Convention, given the relevant well-established case-law of the Court.

The Court received the friendly-settlement declarations, signed by the parties, under which the applicants agreed to waive any further claims against Azerbaijan in respect of the facts giving rise to these applications, subject to an undertaking by the Government to pay them the amounts detailed in the appended table. These amounts will be converted into the currency of the respondent State at the rate applicable on the date of payment, and will be

payable within three months from the date of notification of the Court's decision. In the event of failure to pay these amounts within the above-mentioned three-month period, the Government undertake to pay simple interest on them, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

The payment will constitute the final resolution of the cases.

## THE LAW

Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single decision.

The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and the Protocols thereto and finds no reasons to justify a continued examination of the applications.

In view of the above, it is appropriate to strike the cases out of the list.

For these reasons, the Court, unanimously,

*Decides* to join the applications;

*Decides* to strike the applications out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 19 October 2023.

| | |
|---|---|
| Viktoriya Maradudina<br>Acting Deputy Registrar | Krzysztof Wojtyczek<br>President |

# APPENDIX

## List of applications raising complaints under Articles 11 and 6 of the Convention (unlawful or disproportionate measures against organisers and participants of public assemblies and unfair trial in administrative-offence proceedings)

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Date of receipt of Government's declaration | Date of receipt of applicant's declaration | Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1] | Amount awarded for costs and expenses per application (in euros)[2] |
|---|---|---|---|---|---|---|---|
| 1. | 23128/20<br>15/05/2020 | **Javid Alif oglu IBRAHIMOV**<br>1988 | Javad JAVADOV<br>Baku | 04/07/2023 | 28/07/2023 | 2,500 | 350<br>(to be paid directly to the representative Mr Javad Javadov's bank account) |
| 2. | 39947/20<br>15/07/2020 | **Sagif Asgar oglu GURBANOV**<br>1974 | Javad JAVADOV<br>Baku | 04/07/2023 | 28/07/2023 | 2,500 | 350<br>(to be paid directly to the representative Mr Javad Javadov's bank account) |

[1] Plus any tax that may be chargeable to the applicants.
[2] Plus any tax that may be chargeable to the applicants.